



File No.: EXP202210702

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated September 20, 2023, and based on the following:

FACTS

FIRST: On September 20, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202210702, proceeding to archive the prior investigative actions. This resolution was notified to the appellant on September 21, 2023, as stated in the acknowledgment of receipt in the file.

SECOND: The appellant submitted on October 20, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally arguing that the consent provided to the Club Balonmano Gijón was signed on January 2, 2021, and the images published of his minor daughter correspond to the 2019-2020 season. Furthermore, the consent boxes for sending advertising and publishing personal data on social networks are pre-checked. He insists that the City Council of Gijón has made an error in the RAT of sports activities by considering consent as a legitimate basis since it is not obtained lawfully. The necessity for an Impact Assessment would not have been properly analyzed. The security measures would also be inadequate, and there was a lack of notification regarding the security breach suffered by the claimant. No problem would have occurred if the procedure had been followed by granting a hearing.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

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Regarding the statements made by the appellant, the following should be noted: the actions now being appealed archive the complaint regarding the actions of the City Council of Gijón. In it, the following was stated:

“In relation to information from the Registry of Processing Activities.

On February 23, 2023, the Data Inspection accessed the web address ***URL.1 of the City Council proceeding to download the document INVENTORY OF THE REGISTRY OF PROCESSING ACTIVITIES OF PERSONAL DATA of the City Council of Gijón; also available at the address 'Inventory of the Registry of Processing Activities of Personal Data in the Municipal Administration of Gijón/Xixón. (City Council of Gijón/Xixón, its Autonomous Organizations and the Municipal Companies for Economic Development and Promotion (Municipal Business Center of Gijón/Xixón, Divertia Gijón/Xixón, and Municipal Housing Company of Gijón/Xixón), on June 16, 2021' provided by the claimant.

In the downloaded document, the processing SERVICES SPORTS is found with the purpose of “Management of information, programs, and provision of sports services.” In the section on Legal Basis or lawfulness of the processing activity, Articles 6.1.a), 6.1.c), 6.1.d), and 6.1.e) and 9.2.a)

GDPR are listed; Article 8 LOPD along with other specific regulations. Among the categories of data is: "Other information necessary for activities (such as authorizations for minors)."

Regarding the security breach:

On April 22, 2022, an initial notification was made to the AEPD of (...) detected on April 19, 2022.

On June 3, 2022, a complete notification was made in which a report on the breach was provided. This report states:

On April 20, 2022, the Information Security and Privacy Committee met urgently, agreeing to formally constitute itself as the "Crisis Committee in response to the security incident of April 19, 2022.

(...)

General summary of the main containment measures:

(...)

Impact assessment.

The City Council states that according to "Article 35 GDPR, Recital 84 GDPR; Article 28 GDPR and the indicative lists published by the AEPD regarding data processing that require an DPIA, the processing does not meet the conditions for conducting impact assessments, not posing a high risk to the rights and freedoms of the affected individuals."

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III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution that archives the proceedings subject to the claim against the City Council of Gijón.

However, the prior investigative actions have detected a presumed action contrary to data protection regulations by the Gijón Handball Club; therefore, this Agency will analyze the appropriateness of initiating sanctioning proceedings against the Club.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on September 20, 2023, in file EXP202210702.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be

concluded.
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